

STATE OF NEW YORK

1388--A

Cal. No. 50

2025-2026 Regular Sessions

IN ASSEMBLY

January 9, 2025

Introduced by M. of A. ROSENTHAL, KELLES, COLTON, BURDICK, SEAWRIGHT, REYES, SHIMSKY, LEVENBERG, FORREST, RAGA, OTIS -- read once and referred to the Committee on Environmental Conservation -- ordered to a third reading, amended and ordered reprinted, retaining its place on the order of third reading

AN ACT to amend the environmental conservation law, in relation to the definition of coal tar and its use in pavement products

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

- 1 Section 1. Section 37-0119 of the environmental conservation law, as
2 added by chapter 596 of the laws of 2021, is renumbered section 37-0123.
3 § 2. Paragraph a of subdivision 3 of section 37-0123 of the environ-
4 mental conservation law, as added by chapter 596 of the laws of 2021 and
5 such section as renumbered by section one of this act, is amended to
6 read as follows:
7 a. "Coal tar" means a viscous substance obtained by the destructive
8 distillation of coal, including but not limited to ethylene cracked
9 residues or steam cracked residues, and containing levels of polycyclic
10 aromatic hydrocarbons (PAHs) in excess of [~~ten~~] one thousand milligrams
11 per kilogram.
12 § 3. This act shall take effect one year after it shall have become a
13 law.

EXPLANATION--Matter in italics (underscored) is new; matter in brackets [~~-~~] is old law to be omitted.

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